

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

December 28, 2021

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. at Storey Gym, 2811 House Ave., and via electronic conference meeting. Present were: MAYOR – Patrick Collins, COUNCIL MEMBERS – Dr. Michelle Aldrich (via Zoom), Bryan Cook, Ken Esquibel, Richard Johnson, Pete Laybourn, Dr. Mark Rinne, Scott Roybal, Tom Segrave and Jeff White. Also present: Kylie Soden, Deputy City Clerk. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda. Upon request by Mr. White, and pursuant to support received by Mr. Segrave and Mr. Cook, agenda item #15 was removed from the Consent Agenda. Upon request by Mr. Laybourn, and pursuant to support received by Mr. Johnson and Mr. Segrave, agenda item #18 was removed from the Consent Agenda. Upon request by Mr. Laybourn, and pursuant to support received by Mr. Johnson and Mr. Cook, agenda item #28(b) was removed from the Consent Agenda. Mr. Segrave moved to approve remaining items, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body.

[CA] Minutes from Regular Meeting of the Governing Body on December 13, 2021. Motion (per Consent Agenda) carried.

ORDINANCE –2nd READING – Amending the Unified Development Code of the City of Cheyenne, Wyoming, to create the definitions, ‘Functional Turf’ and ‘Non-Functional Turf’ and amending various sections of Article 6. Dale Spofield spoke in favor of the ordinance noting several benefits including water conservation during drought seasons. Mr. Spofield provided information on ways he has changed the landscaping at his residence which has resulted in water conservation. Reporting for Public Services Committee, Dr. Rinne moved to approve on second reading, seconded by Mr. White. Comment was made that the governing body has gone to great lengths to update commercial landscaping requirements in the last few years. Upon inquiry, Jeanie Vetter, Greenway and Parks Planner, Planning and Development Department, provided lot square footage and water usage information for the Maverik gas station property located at 140 Gardenia Dr. compared to Panera Bread which is similar in lot size. Ms. Vetter noted that Panera Bread uses substantially less water than Maverik due to having no turf grass but still meeting current landscaping requirements. Seth Lloyd, Planning and Development Department, explained upon inquiry that 75 site plan applications had been submitted in 2021. Ms. Vetter further advised that the ordinance amendment would likely result in saving millions of gallons of water per year based on the amount of site plans submitted in 2021. Comments were made on the following topics: updating the watering process at golf courses which could save 195 million gallons of water annually, water reservoirs being at 89% capacity at the end of the watering season and are currently

at full capacity, amount of water savings possible by eliminating outside user agreements and the completion of the southside water pipe project which will result in generating more water. Motion carried. Voting “yes” – all members of the governing body.

ORDINANCE –2nd READING – Pursuant to Section 2.2.2 Planned Development – Regulating Plan or Development Master Plan, Section 5.1.3 Official Zoning Map, and Section 5.6.2 PUD - Planned Unit Development District of the Unified Development Code, Amending Ordinance No. 4232 by modifying certain standards of the Adopted District, Planned Unit Development (PUD), for a portion of Sections 8 & 9, all of the W1/2 Section 14, a portion of the E ½ E ½ of Section 17, and all of Sections 15, 16, & 21; Township 13 North, Range 66 West of the 6th P.M., Laramie County, Wyoming (Located to the southeast of the intersection of E. College Drive and Avenue C). Dr. Rinne advised there was no recommendation from Public Services Committee. Dr. Rinne moved to approve on second reading with staff conditions #1 & #2, seconded by Mr. Cook. It was noted the developer is requesting to build 30 complexes containing 120 units that would be 40% contiguous to the Greenway and the development wouldn’t include a clubhouse. Dr. Rinne explained proposed staff condition #1 is for the units to remain at 100 instead of 120 and it appears the applicant is amenable to the condition. Motion carried. Voting “yes” – all members of the governing body with the exception of Mr. Segrave voting “no”.

ORDINANCE – 2nd READING – Amending Ordinance No. 4396 Defining the Terms and Conditions of Employment for Sworn Officers of the Cheyenne Police Department for Fiscal Year 2021-2022. Reporting for Finance Committee, Mr. Roybal moved to approve on second reading, seconded by Mr. Johnson. Motion carried. Voting “yes” – all members of the governing body.

ORDINANCE –1st READING – Amending Chapter 10.76, Abandoned Vehicles, of Title 10, Vehicles and Traffic, of the Code of the City of Cheyenne, Wyoming – referred to Finance Committee. (Sponsors – Dr. Aldrich, Mr. Cook, Mr. Esquibel, Mr. Johnson, Dr. Rinne, Mr. Roybal and Mr. White)

ORDINANCE –1st READING – Amending Chapter 8.60, Nuisances, of Title 8, Health and Safety, of the Code of the City of Cheyenne, Wyoming – referred to Finance Committee. (Sponsors – Dr. Aldrich, Mr. Cook, Mr. Esquibel, Mr. Johnson, Dr. Rinne, Mr. Roybal and Mr. White)

ORDINANCE –1st READING – Amending Chapter 6.08.200, Keeping of Bees, of Chapter 6.08, Animal Care and Control Regulations Generally, of Title 6, Animals, of the City of Cheyenne, Wyoming. (Sponsors – Dr. Aldrich, Mr. Cook, Mr. Esquibel, Mr. Johnson, Dr. Rinne, Mr. Roybal and Mr. White)

[CA] RESOLUTION – Authorizing the Mayor and City Clerk to sign a Final Plat for Cheyenne Ice and Events Center, 4th Filing, a replat of Lots 1 and 2, P.A.S. Subdivision 1st Filing and a Portion of Lot 1, Block 1 Back 40 Subdivision First Filing situated in a portion of Section 1, Township 13 North, Range 67 West of the 6th P.M., City of Cheyenne, Laramie County, Wyoming (located northwest of the intersection of West Lincolnway and Stinson Avenue). Motion (per Consent Agenda) carried. (#6192)

RESOLUTION – Authorizing the Mayor and City Clerk to sign a Final Plat for Kornegay Homesites, 3rd Filing, a replat of Lots 8 through 12, inclusive, and 8’alley directly north of and adjacent to Lots 8 through 12, inclusive, Kornegay Homesites, lying within the northwest ¼ of Section 19, Township 14 North, Range 66 West of the 6th P.M., City of Cheyenne, Laramie County, Wyoming (located northeast of the intersection of Quincy Road and Yellowstone Road). Dr. Rinne moved to adopt, seconded by Mr. White. Dr. Rinne moved to amend by substitute map dated September 15, 2021, seconded by Mr. Segrave. Mayor Collins noted the substitute map contains updated ownership information. Motion to amend by substitute map carried. Voting “yes” – all members of the governing body. Main motion as amended carried. Voting “yes” – all members of the governing body. (#6193)

RESOLUTION – Authorizing the Mayor and City Clerk to sign a Final Plat for Whitney Ranch, 5th Filing, a replat of Lot 14, Block 9 of Whitney Ranch 1st Filing situated in a portion of Section 23, Township 14 North, Range 66 West of the 6th P.M., City of Cheyenne, Laramie County, Wyoming (located northwest of the intersection of Dell Range Blvd and Gysel Place). Dr. Rinne moved to adopt, seconded by Mr. Segrave. Dr. Rinne moved to amend by substitute map dated December 14, 2021, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body. Main motion as amended carried. Voting “yes” – all members of the governing body. (#6194)

RESOLUTION – Designating local banks as depositories for Municipal Funds. Mayor Collins declared a conflict of interest due to a business affiliation, relinquished duties of the Chair to Council President White and vacated the meeting room during voting. Mr. Roybal moved to adopt, seconded by Mr. Johnson. Motion carried. Voting “yes” – all members of the governing body with the exception of Mayor Collins who didn’t vote. President White relinquished duties of the Chair back to Mayor Collins following the vote. (#6195)

[CA] RESOLUTION – Supporting the City of Cheyenne’s application for the Community Development Block Grant for a covered picnic structure at Pioneer Park. Motion (per Consent Agenda) carried. (#6196)

[CA] RESOLUTION – Reinstating longevity pay for eligible City of Cheyenne non-uniformed employees. Motion (per Consent Agenda) carried. (#6197)

RESOLUTION – Authorizing a salary increase of one dollar and fifty cents (\$1.50) per hour to eligible employees of the City of Cheyenne. Seth Lloyd, Cheyenne Public Employees Association, spoke in favor of the resolution and against exempting otherwise eligible employees who have received a pay increase since July 1, 2021. Mr. Roybal moved to adopt, seconded by Mr. White. Upon inquiry, City Treasurer Robin Lockman advised that due to higher than projected revenues and reserves and anticipated continued economic progress, the pay raise and reinstatement of longevity pay is possible. Mayor Collins noted it is believed revenues will continue to increase supporting the raises and that the \$1.50 per hour raise is desired to be most beneficial for all employees across the pay scale. It was explained the resolution is specifically for pay increases for eligible employees and longevity pay reinstatement was addressed through other agenda items. Motion carried. Voting “yes” – all members of the governing body. (#6198)

[CA] RESOLUTION – Authorizing submission of a Federal Emergency Management Agency Preparedness Grant application under the Assistance to Firefighters Grant Program, on behalf of the Governing Body of the City of Cheyenne, for the purpose of purchasing new lift air bag kit. Motion (per Consent Agenda) carried. (#6199)

[CA] RESOLUTION – Authorizing submission of a Federal Emergency Management Agency Preparedness Grant application under the Assistance to Firefighters Grant Program, on behalf of the Governing Body of the City of Cheyenne, for the purpose of purchasing new fire hose and nozzles. Motion (per Consent Agenda) carried. (#6200)

[CA] RESOLUTION – Authorizing the City Treasurer to allocate Revenue Recovery Funds for identified purposes from the U.S. Department of Treasury for the American Rescue Plan Coronavirus State and Local Fiscal Recovery Funds in the amount of \$986,645.00. Motion (per Consent Agenda) carried. (#6201)

RESOLUTION – Proposing the City of Cheyenne to become the ‘Climate Wellness Capitol’ of the world by working with the Carbon Asset Network for the benefit of soil health and soil organic carbon capture. Dale Steenbergen, President/CEO of the Greater Cheyenne Chamber of Commerce, presented and read into the record a letter of support from the Wyoming Stock Growers Association (WSGA) for the proposed resolution. Mr. Steenbergen provided information on carbon credits and block chain noting the resolution will bring the 2 components together and provide a path forward. Upon inquiry regarding language in the resolution relating to certification by the City of Cheyenne, Mr. Steenbergen explained the City will only certify that the Carbon Asset Network has completed certain work. Upon further inquiry, Mr. Steenbergen advised that it would be beneficial for an agreement to be entered into in the future for the project and there is no risk for the City with the resolution as the City will not be providing any funding. The resolution is acknowledgement that the Carbon Asset Network has a partnership with the City for the project. Marvin Nash, Senior Advisor, Carbon Asset Network, provided information on the following: City’s 2% share of donations which is 2% of total donation after 70% is paid to landowners, block chain and carbon assets, Cheyenne is the only city they are currently working with, environmental social governance and certification that will be provided by the City which would acknowledge soil samples are sent to laboratories. Mr. Nash further explained soil samples can’t be contaminated as they go through the block chain and don’t go back to the Carbon Asset Network and after the certification, a token is issued by the Carbon Asset Network. Upon inquiry, Mr. Nash advised in 2021, \$40,000 was collected in fundraising efforts in 3 months and then the decision was made to stop fundraising which will be reapproached in 2022. He explained that Encore Green Environmental is a 501c3 business, but the Carbon Asset Network is not. Mr. Roybal moved to adopt, seconded by Mr. Segrave. Dr. Rinne moved to amend by deleting the entirety of the current “Now Therefore, Be it Resolved” paragraph and by replacing with the following language: “NOW, THEREFORE, BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING, that the Governing Body of the City of Cheyenne encourages and authorizes the Mayor and his administration to work with the Carbon Asset Network to develop a program in which the City will verify the Carbon Asset Network’s soil organic carbon and soil health protocol for receipt of two percent of donations made to the Carbon Asset Network. And

Furthermore, any agreements, MOU's or contracts developed between the City and the Carbon Asset Network will be submitted to the Governing Body for approval.", seconded by Mr. Johnson. Comments were made on the following topics: complexity of the resolution and the soil organic carbon capture project, further instruction and information needed for the path forward, support for the amendment, support for the resolution generally and concern of not going through the Request for Proposals (RFP) process. Motion to amend carried. Voting "yes" – all members of the governing body. Discussion continued and included the following: concern that the Carbon Asset Network does not sign the resolution, support for going through the RFP process, further support for the amendment, need for contracts/agreements in the future for the project and the complexity of organic carbon capture. Main motion as amended carried. Voting "yes" – all members of the governing body with the exception of Mr. Cook and Mr. Johnson voting "no". (#6202)

RESOLUTION – Authorizing the Mayor to execute settlement participation forms for the City of Cheyenne to participate as provided in the settlement agreements designated as the "Janssen Settlement" and "Distributor Settlement" dated July 21, 2021. Mr. Roybal advised the item was reviewed under other items for the agenda at the 12-20-2021 Finance Committee meeting, therefore, provisions of Title 2 of City Code have been met. Mr. Roybal moved to adopt, seconded by Mr. Johnson. Motion carried. Voting "yes" – all members of the governing body. (#6203)

RESOLUTION – Authorizing Ochs Law Firm P.C., to enter into the OneWyo Opioid Settlement Memorandum of Agreement – a distribution plan to resolve the City of Cheyenne's claims in a lawsuit regarding the Nation Opioid Epidemic. Mr. Roybal advised the item was reviewed under other items for the agenda at the 12-20-2021 Finance Committee meeting, therefore, provisions of Title 2 of City Code have been met. Mr. Roybal moved to adopt, seconded by Mr. Johnson. Upon inquiry, it was noted the City will receive \$415,740.00 which will be distributed in annual payments of \$23,096.66. City Attorney Stefanie Boster, upon inquiry, explained the funds are required to be used for opioid abatement strategies that are listed in Exhibit A of the OneWyo Opioid Settlement Agreement. Motion carried. Voting "yes" – all members of the governing body. (#6204)

[CA] RESOLUTION – Reappropriating the Fiscal Year 2022 Budget of the City of Cheyenne according to the provisions of W.S. §16-4-112 & §16-4-113 – referred to Finance Committee. (Sponsor – Mr. Roybal)

[CA] Memorandum of Understanding between the City of Cheyenne, Transit Division, and Laramie County to provide public transportation services to Laramie County Community College and for an area of Laramie County immediately adjacent to the City. Motion (per Consent Agenda) carried. (#7460)

[CA] Professional Services Agreement between the City of Cheyenne, Cheyenne Metropolitan Planning Organization (MPO), and West Edge Collective, LLC, for Public Engagement and Web Support Services (MPO Federal Funds). Motion (per Consent Agenda) carried (in an amount not to exceed \$31,200.00). (#7461)

[CA] Professional Services Agreement between the City of Cheyenne and Onsite Electronics Recycling, LLC, d/b/a I.T. Refresh, for the Electronics Recycling Services Project (Solid Waste Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$200,000.00). (#7462)

[CA] Purchase Agreement between the City of Cheyenne and Ned Murray Co., a Partnership, Jane D. Forbes Trustee of Jane D. Forbes Revocable Living Trust for Lots 1-9 and 14-22, Block 654, South Cheyenne Plat, City of Cheyenne, County of Laramie, State of Wyoming (2019-2022 1% Sales Tax). Motion (per Consent Agenda) carried (in an amount not to exceed \$116,000). (#7463)

Agreement between the City of Cheyenne and the Cheyenne Animal Shelter for Animal Shelter Services for Fiscal Year 2022. Britney Tennant, Cheyenne Animal Shelter CEO, advised she was available for any questions. Mr. Roybal advised the item was reviewed under other items for the agenda at the 12-20-2021 Finance Committee meeting, therefore, provisions of Title 2 of City Code have been met. Mr. Roybal moved to approve in an amount not to exceed \$528,000.00 for sheltering services and \$20,000.00 for miscellaneous animal control equipment, seconded by Mr. Cook. Comments were made in support of the City and Animal Shelter working together on the contract and continuing to work together and appreciation was expressed to Ms. Tennant for her leadership and goals. Motion carried. Voting “yes” – all members of the governing body. (#7464)

[CA] Professional Services Agreement between the City of Cheyenne and Plan One Architects, for the Emergency Response Facility design and construction Administration Services Project (Specific Purpose Sales Tax) – referred to Finance Committee.

[CA] Memorandum of Understanding between WYDOT and the Cheyenne MPO for the Transit Connection Feasibility Analysis: Northern Colorado to Southern Wyoming – referred to Finance Committee.

[CA] Professional Services Agreement between the City of Cheyenne, Cheyenne Metropolitan Planning Organization (MPO) and HDR Engineering, Inc., for the Transit Connection Feasibility Analysis: Northern Colorado to Southern Wyoming – referred to Finance Committee.

[CA] Amendment #1 to City Contract #7268 with the State of Wyoming Office of Homeland Security for a grant for the Cheyenne Regional Response Team #7, extending the term of the grant through January 31, 2023. Motion (per Consent Agenda) carried. (#7268)

Amendment #2 to Contract #2511 amending and restating the City of Cheyenne, Laramie County, Wyoming, Industrial and Economic Development Joint Powers Board Agreement. Mr. Roybal moved to approve, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body with the exception of Mr. Johnson voting “no”. (#2511)

[CA] Consideration of Bid #E-5-22 for furnishing two (2) Five Gang Fairway Mowers for the City of Cheyenne, Community Recreation & Events Department-Golf Division (Golf Fund). Motion (per Consent Agenda) carried (accepted bid from Stotz Equipment, Evansville, WY in an amount not to exceed \$101,700.00).

Consideration of Bid #E-6-22 for furnishing one (1) new 2021-2022 65-foot aerial device, XT60 Pro Rear Mount Aerial Device or approved equal for the City of Cheyenne, Community Recreation & Events Department-Forestry Division (2019-2022 1% Sales Tax). Mr. Roybal moved to accept the bid from Floyd's Truck Center, Cheyenne, in an amount not to exceed \$167,295.00, seconded by Mr. Johnson. Upon inquiry, Jason Sanchez, Deputy Director of Community Recreation and Events, provided information on the aerial device noting it is a replacement and the current device from 1998 will be traded in. He explained the current device has exceeded its lifespan and \$20,000 has been expended in repairs for the current device. Upon further inquiry, Mr. Sanchez explained a device purchased for the Forestry department to use downtown is currently in use. Motion carried. Voting "yes" – all members of the governing body.

[CA] Consideration of Bid #S-9-22 for a Contract between the City of Cheyenne and Sustainable Modular Management, for the Compost Facility Prefabricated Metal Office Trailer Project (Solid Waste Fund) – referred to Finance Committee.

[CA] Consideration of Bid #E-7-22 for furnishing fourteen (14) new four-door 2022-2023 model utility (SUV) Police Interceptors, for the City of Cheyenne, Cheyenne Police Department (2019-2022 1% Sales Tax) – referred to Finance Committee.

[CA] Consideration of Bid #E-22-21 for furnishing One (1) $\frac{3}{4}$ ton crew cab truck for the Traffic Division, one (1) $\frac{3}{4}$ ton regular cab truck for the Facilities Maintenance Division, and three (3) $\frac{3}{4}$ ton crew cab trucks for the Street and Alley Division (2015-2018 & 2019-2022 1% Sales Tax) – referred to Finance Committee.

[CA] Consideration to Purchase between the City of Cheyenne, and Motorola Solutions/Bearcom, for the purchase of Fourteen (14) Motorola APX8500 Radios for the City of Cheyenne Police Department (2019-2022 1% Sales Tax) – referred to Finance Committee.

No comments were made on the Voucher Report as presented.

Upon inquiry, City Treasurer Robin Lockman provided information on the payment received from Granite Peak Development noting it is for a loan we are guaranteed for the Swan Ranch Rail Spur and the payment is received and used every month to pay on the loan. No further comments were made on the Revenue Report as presented.

Appointments of Ryan Gertsch to the Contractor Licensing Board; Boyd Wiggam to the Planning Commission; Joshua Morris to the Building Code Board of Appeals; Linda Burt to the Board of Adjustment; Lori Brand to the Mayor's Council for People with Disabilities; and Stephen Ganison, Wendy Soto, Erin LeBlanc, Patrice Gapen, J.C. Manalo, Joseph Bainbridge, Joshua Fillbrandt, Scott Granger and Tate Smith to the Housing and Community Development Advisory Council. Appreciation was expressed to the individuals willing to serve on boards. Mr. Roybal moved to approve, seconded by Mr. White. Motion carried. Voting "yes" – all members of the governing body with the exception of Mayor Collins who did not vote (mayoral appointments).

Reappointments of Scott Homar to the Fire Civil Service Commission; Roberta Coates to the Police Civil Service Commission; Don Herrold, Milward Simpson, Josh Chrysler, and Gary

Sims to the Historic Preservation Board; Brian Casey to the Contractor Licensing Board; Linda Burt, and Lee Filer to the Personnel Commission; Jeremy Arneson to the Planning Commission; Randy Byers and Jesse Naiman to the Building Code Board of Appeals; Swede Nelson to the Board of Adjustment; and Charity Henning to the Mayor's Council for People with Disabilities. Mr. White moved to approve, seconded by Mr. Segrave. Motion carried. Voting "yes" – all members of the governing body with the exception of Mayor Collins who did not vote (mayoral appointments).

Announcement was made that due to the New Year's holiday schedule, regularly scheduled City Council Committee meetings will instead be held as follows: Finance Committee will meet at Noon on Tuesday, January 4, 2022 and Public Services Committee will meet at Noon on Wednesday, January 5, 2022 at the Kiwanis Community House at 4603 Lions Park Drive, Cheyenne, WY, and via electronic conference meeting.

Announcement was made that due to a scheduling conflict, the regularly scheduled City Council meeting on Monday, January 10, 2022 will instead be held at the Cheyenne Civic Center at 6:00 p.m. at 510 W. 20th Street, Cheyenne, WY, and via electronic conference meeting.

Under other business:

Mr. Johnson provided information on upcoming fundraising events for Comea House and Rooted in Cheyenne noting both events will be held on December 30th at Crimson Sky Tattoo (benefit for Comea House) and Black Tooth Brewery (Rooted in Cheyenne).

There being no further business to come before the governing body, the meeting was officially adjourned at 7:24 p.m.

Submitted by,

Kylie Soden,
Deputy City Clerk, CMC

This notice is available in alternative, accessible formats upon request.

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